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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

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PART I : SECTION (I) — GENERAL

Government Notifications

REGULATION FOR THE PREVENTION OF THE SPREAD OF COCONUT MITE (ACERIA GUERRERONIS) OUTSIDE THE DISTRICTS OF ANURADHAPURA AND POLONNARUWA UNDER THE PLANT PROTECTION ACT, No. 35 OF 1999

I, Dissanayake Mudiyansele Sumanaweera Bandara Dissanayake, Minister of Samurdhi, Agriculture and Livestock by virtue of powers vested on me by Section 9 of the Plant Protection Act, No. 35 of 1999 (Legislative Enactment of the Democratic Socialist Republic of Sri Lanka, 1980 Revision, Volume XI Chapter 276), as last amended by Act, No. 20 of 1986 do hereby effect the following regulations under the said Ordinance for the eradication of the outbreak of mite infestation of coconut cultivation in Sri Lanka identified as "Aceria Guerreronis".

1. These regulations are declared in addition to the "Regulation No. 1 of 1999, as No. 2 of 2002 for the Eradication of an Outbreak of Mite (Aceria Guerreronis) in Coconut" under the Plant Protection Ordinance and shall be effective from the date of gazetting until further notice.

2. The mite infestation caused by the mite identified as Mite (Aceria Guerreronis) which colonizes and harbors beneath the perinath of nuts shall be henceforth considered as a declared pest under the Plant Protection Act. This pest is known to cause serious damage to coconuts at all stages of development.

3. The aforesaid mite infestation is reported to have spread in some Divisional Secretariat areas of the Anuradhapura and Polonnaruwa Districts. Hence, coconut cultivation lands, estates or gardens situated within the Administrative Districts of Anuradhapura and Polonnaruwa shall be considered and declared as areas infested by the said pest.

4. The owner or occupier of any cultivation lands, estates or gardens upon which the described mite infestation on coconuts is present, shall forthwith report in writing the presence of the infestation to the Director-General of Agriculture or to the Director, Coconut Research Institute, Divisional Secretary of the Area and failure to report so shall be an offence under the Plant Protection Act, unless such person(s) shall prove that he or she had no reasonable ground for suspecting the presence of the said infestation on coconuts with his/her cultivation land, estate or garden.

5. No coconut plants, fresh coconuts with husks intact or raw coconut husks or part of coconut plants affected or infested by or liable to be affected or infested by the said mite infestation shall be removed from any infested area by any person for any purpose whatsoever, whether within the Administrative Districts of Anuradhapura and Polonnaruwa or elsewhere. Any person who transports or distributes coconut plants, fresh coconuts or raw green coconut husks or parts of coconut plants or coconut infested by the mite for any purpose and who uses such coconut planting materials infested by the pest for any purpose shall be guilty of an offence under the Plant Protection Act.

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PART I : Sec. (I) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 22.05.2002

6. Where the aforesaid mite infestation on coconut occurs on or upon any coconut cultivation land, estate or garden, it shall be the duty of the owners or occupants of such coconut cultivation land, estate or garden, when required or directed to do so by the Director-General of Agriculture (or any person, assisting the Director-General of Agriculture) or any officer authorized by the Director-General of Agriculture.

(a) to cut or pluck or caused to be cut or pluck all bunches of coconut on trees standing upon such coconut cultivation land, estate or garden and to transport or make arrangements for transportation of such coconuts inclusive of all available previously plucked raw coconut with husks intact and borne by such trees in a manner specified by the officer who issued the requirement or direction, to a place identified by such officer for crushing destruction or for other purposes determined by the said officer ; and

(b) disinfect or cause to be disinfected such coconut cultivation land, estate or garden by applying a chemical treatment specified by the officer who issues the requirement or direction.

7. Where any person fails or refuses or neglects to comply with any requirement or direction given to him or her under Regulation No. 6, it shall be lawful for the Director-General of Agriculture or an officer authorized by him to enter at all reasonable times any such coconut cultivation or land or estate or garden with such assistance as may be necessary and cause all coconuts, affected or likely to be affected by the mite infestation on coconuts, destroyed or confiscated by any appropriate manner as deemed necessary.

8. All expenses incurred by the Director-General of Agriculture or any officer authorized by the Director-General of Agriculture in performing the action mention in Regulation 7 shall be payable by the person who is required or directed under Regulation 6 to carry out such work, and shall be recoverable from that person upon application made by the Director-General of Agriculture to the Magistrate Court having jurisdiction over the location where such person is resident in like manner as a fine imposed by that Court, notwithstanding that the amount of such expenses may exceed the amount of the fine which such Court may in the exercise of its ordinary jurisdiction impose.

9. Imposition of a fine under Regulation 8 shall not relieve a person from any penalty incurred by way of his neglect or default or refusal to comply with regulations stipulated under the Plant Protection Act.

10. When the Director-General of Agriculture is satisfied that coconuts cultivated or grown or allowed to be grown within any area or areas are infested by the mite, he shall declare by notification in the *Gazette*, such area or areas as infested areas and, the regulations made herein for the eradication of the mite infestation on coconuts shall be effective in such areas.

In order to arrest further spread of the mite infestation, which is known to cause serious damage to coconuts and to ensure strict compliance of the foregoing regulations accordingly, the under-mentioned precautionary measures are hereby imposed.

1. Prohibition of the transportation of coconuts with intact husks outside the Divisional Secretariat areas mentioned in 3 above and out of the Administrative Districts of Anuradhapura and Polonnaruwa. This does not apply to coconuts which are heaped for more than 21 days and husked and are very dry or dark brown in colour.
2. Prohibition of the transportation of green coconut husks, infested coconut plants or parts of coconut plants out of the Divisional Secretariat areas as mentioned in 3 above and out of the Administrative Districts of Anuradhapura and Polonnaruwa.
3. Check points (barriers) will be installed at the following locations within the boundaries of the Administrative Districts of Anuradhapura and Polonnaruwa.
 - 3.1. Nikaweratiya-Mahawa Junction
 - 3.2. Mahagalkadawala Junction
 - 3.3. Wariyapola Hospital Junction

- 3.7. Ibbagamuwa Junction
 - 3.8. Opposite Melsiripura Medamulla School
 - 3.9. Medagalla Junction
 - 3.10. Mirisigoni Oya Junction
 - 3.11. Elahera Junction
4. For the implementation of these regulations, the Director-General shall appoint Authorized Officers from the Department of Agriculture, Provincial Agriculture Agrarian service, Police and from Coconut Research Institute, Coconut Cultivation Board and officers from the Divisional Secretariat of the Anuradhapura and Polonnaruwa Districts who will be issued with letters of authority by the Director-General of Agriculture for the purpose.
- These officers are empowered to examine all vehicles for detection and prevention of prohibited materials referred to at (1) and (2) above being transported out of the declared areas.
5. Notices will be displayed at the check points and other public places to educate the members of the public regarding the mite infestation on coconuts and the foregoing precautionary measures.

S. B DISSANAYAKE,
Minister of Samurdhi, Agriculture and Livestock.

Ministry of Samurdhi, Agriculture and Livestock,
" Sampathpaya ".

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